

Hollowell Patent Group PLLC

www.hollowellpatent.com

May 3, 2019

Gary Smith, General Manager

Odonnell Inc

Re: Engagement for Patent Portfolio Review

Dear Mr. Smith:

This letter sets out the terms on which this firm will represent Odonnell Inc in the patent portfolio review we discussed at your offices. It is written to be complete rather than short. If any part of it does not match your understanding of what we agreed, say so before you sign it. An engagement letter is worth having only if both sides read it the same way on the day it is signed, and not for the first time on the day something has gone wrong.

Scope of the Representation

We will review the patent portfolio you have identified to us, family by family. For each family we will reconstruct the prosecution history from the official file, confirm the chain of title and the recorded assignments, compare the issued and pending claims against the product designations you provide us, identify the families in which continuation or divisional practice remains available and the dates by which it must be exercised, and verify every deadline we find against our own docket. We will deliver written findings organized by family, each with the record that supports it and a recommendation you can act on or decline.

The scope stated above is the whole of it. This engagement does not include the preparation or prosecution of new applications, opinion work on the validity, infringement, or enforceability of any patent held by a third party, freedom-to-operate analysis, or the representation of Odonnell Inc in any contested proceeding, appeal, or litigation. Any of those can be added. None of them is added by conversation. They are added by a written amendment to this letter, signed by both of us, stating the new work and its terms.

Conflicts

We have run this matter against our conflicts records and identified no conflict that bars the representation. That check is only as good as the parties we knew to check. If the review reaches a family in which another client of this firm has an interest, or if you acquire, license, or assert rights that bring a new party into the matter, tell us and we will run the check again. Should a

conflict arise that cannot be waived, we will withdraw from the matter under the terms below rather than continue and hope.

Approach

Two things about how we work are worth stating in the letter rather than leaving you to discover them. First, we do not report a conclusion until the file supports it, which means our early reports will read as inventory and not as advice. Second, every date we find in your portfolio goes onto our docket, is confirmed by a second person, and is reported to you whether or not you asked about it. The rest of this engagement is judgment, and reasonable people can differ about judgment. A missed date is not judgment. It is the one error this firm does not absorb, and the procedure that prevents it is not negotiable, including by you.

Your Team

Heather Munoz, Partner, will have charge of the review and will sign the written findings. Kelly Snyder, Patent Agent, will reconstruct the file histories and the docket, and will send you the periodic reports on the matter. Amanda Schwartz, Associate, will carry the claim-by-claim comparison against the products you designate. I will supervise the engagement and I am your point of escalation; if the work or the reporting is not what this letter describes, the call comes to me and not to the team. The matter folder will be readable by these attorneys, our docketing staff, and me, and by no one else at the firm.

Commencement and Duration

Work will commence on May 13, 2019, subject to our receipt of a countersigned copy of this letter. We expect the review to run approximately seven months from commencement, on the assumption that the portfolio is substantially as you have described it and that the file materials in your possession reach us as they are requested. If either assumption fails, the schedule moves, and we will tell you in writing when it does and by how much.

Fees and Payment

The fee arrangement for this engagement is stated on the signature page of this letter and is executed together with it. Official fees, search vendor charges, translations, courier, and similar third-party costs are not included in the fee and are billed as incurred, with the supporting documentation attached to the invoice. We invoice monthly. Invoices are payable within thirty days of receipt. If you dispute a charge, tell us within that period and we will not treat the disputed portion as past due while we work it out. If an invoice remains unpaid sixty days after receipt, we may suspend work on the matter on written notice to you, and that notice will list every docketed date then pending so that you know precisely what a suspension puts at risk. Suspension does not extend a statutory or Office deadline. Nothing in this letter, and nothing either of us intends, extends one of those.

Term and Termination

This engagement continues until we deliver the written findings and you accept them, or until it is terminated. You may terminate at any time, with or without cause, on written notice to me. We may withdraw where the applicable rules of professional conduct permit it, including for non-payment, on written notice and subject to any approval a tribunal requires. On termination you remain responsible for fees earned and costs incurred through the effective date. We will return the file promptly and at our expense, and we will deliver with it a written statement of every docketed date then pending in the portfolio. The deadline is indifferent to the state of our relationship, and you should not have to reconstruct it from our invoices.

Confidentiality

Information you provide us in the course of the representation is confidential and, where the law so provides, privileged. We will not disclose it except as you direct, as the representation requires, or as we are compelled by law or by an order we cannot properly resist, in which case we will tell you first if we are permitted to. Our written analyses will be marked privileged and prepared for you rather than for circulation; the protection is not improved by our marking it, but it is not helped by your forwarding it either, and we will flag the documents where that matters.

Limitation of Liability

Our liability arising out of this engagement is limited to the fees paid to us under it, and neither of us is liable to the other for indirect, incidental, or consequential damages, including lost profits or lost licensing revenue. Any claim under this letter must be brought within one year after you know, or reasonably should know, of the facts giving rise to it. This paragraph does not limit our responsibilities under the rules of professional conduct that govern this firm, and it cannot; we state it here so that you do not read it as attempting to. You may wish to have this paragraph reviewed by counsel other than us before you sign.

Governing Law

This letter is governed by the laws of the state in which the firm maintains its principal office, without regard to its conflict-of-laws rules. Matters of patent practice before the Office are governed by federal law and the Office's rules, which no agreement between us alters.

If the foregoing is acceptable, please sign both copies where indicated, execute the fee terms on the signature page, and return one fully executed copy to my attention. We will not open the docket for this matter until it is back. Questions before signing are welcome and are cheaper than questions after.

Fixed professional fee, as executed: \$120,000

Mary Bradley

Managing Partner

Date: May 3, 2019

Gary Smith

General Manager, Odonnell Inc

Date: May 3, 2019